Further, intention is necessary in all the sacraments. Now he who consents not in his heart has no intention of contracting marriage; and therefore he does not contract a marriage.

I answer that, The outward cleansing stands in the same relation to baptism as the expression of words to this sacrament, as stated above (A[2]). Wherefore just as were a person to receive the outward cleansing, with the intention, not of receiving the sacrament, but of acting in jest or deceit, he would not be baptized; so, too, expression of words without inward consent makes no marriage.

Reply to Objection 1: There are two things here, namely the lack of consent---which benefits him in the tribunal of his conscience so that he is not bound by the marriage tie, albeit not in the tribunal of the Church where judgment is pronounced according to the evidence---and the deceit in the words, which does not benefit him, neither in the tribunal of his conscience nor in the tribunal of the Church, since in both he is punished for this.

Reply to Objection 2: If mental consent is lacking in one of the parties, on neither side is there marriage, since marriage consists in a mutual joining together, as stated above (Q[44], A[1]). However one may believe that in all probability there is no fraud unless there be evident signs thereof; because we must presume good of everyone, unless there be proof of the contrary. Consequently the party in whom there is no fraud is excused from sin on account of ignorance.

Reply to Objection 3: In such a case the Church compels him to hold to his first wife, because the Church judges according to outward appearances; nor is she deceived in justice or right, although she is deceived in the facts of the case. Yet such a man ought to bear the excommunication rather than return to his first wife; or else he should go far away into another country.

Whether consent given secretly in words of the present makes a marriage?

Objection 1: It would seem that consent given secretly in words of the present does not make a marriage. For a thing that is in one person's power is not transferred to the power of another without the consent of the person in whose power it was. Now the maid is in her father's power. Therefore she cannot by marriage be transferred to a husband's power without her father's consent. Wherefore if consent be given secretly, even though it should be expressed in words of the present, there will be no marriage.

Objection 2: Further, in penance, just as in matrimony, our act is as it were essential to the sacrament. But the sacrament of penance is not made complete except by means of the ministers of the Church, who are the dispensers of the sacraments. Therefore neither can marriage be perfected without the priest's blessing.

Objection 3: Further, the Church does not forbid baptism to be given secretly, since one may baptize either privately or publicly. But the Church does forbid the celebration of clandestine marriages (cap. Cum inhibitio, De clandest. despons.). Therefore they cannot be done secretly.

Objection 4: Further, marriage cannot be contracted by those who are related in the second degree, because the Church has forbidden it. But the Church has also forbidden clandestine marriages. Therefore they cannot be valid marriages.

On the contrary, Given the cause the effect follows. Now the sufficient cause of matrimony is consent expressed in words of the present. Therefore whether this be done in public or in private the result is a marriage.

Further, wherever there is the due matter and the due form of a sacrament there is the sacrament. Now in a secret marriage there is the due matter, since there are persons who are able lawfully to contract---and the due form, since there are the words of the present expressive of consent. Therefore there is a true marriage.

I answer that, Just as in the other sacraments certain things are essential to the sacrament, and if they are omitted there is no sacrament, while certain things belong to the solemnization of the sacrament, and if these be omitted the sacrament is nevertheless validly performed, although it is a sin to omit them; so, too, consent expressed in words of the present between persons lawfully qualified to contract makes a marriage, because these two conditions are essential to the sacrament; while all else belongs to the solemnization of the sacrament, as being done in order that the marriage may be more fittingly performed. Hence if these be omitted it is a true marriage, although the contracting parties sin, unless they have a lawful motive for being excused. [*Clandestine marriages have since been declared invalid by the Council of Trent (sess. xxiv). It must be borne in mind that throughout the treatise on marriage St. Thomas gives the Canon Law of his time.]

Reply to Objection 1: The maid is in her father's power, not as a female slave without power over her own body, but as a daughter, for the purpose of education. Hence, in so far as she is free, she can give herself into another's power without her father's consent, even as a son or daughter, since they are free, may enter religion without their parent's consent.

Reply to Objection 2: In penance our act, although essential to the sacrament, does not suffice for producing the proximate effect of the sacrament, namely forgiveness of sins, and consequently it is necessary that the act of the priest intervene in order that the sacrament be perfected. But in matrimony our acts are the sufficient cause for the production of the proximate effect, which is the marriage bond, because whoever has the right to dispose of himself can bind himself to another. Consequently the priest's blessing is not required for matrimony as being essential to the sacrament.

Reply to Objection 3: It is also forbidden to receive baptism otherwise than from a priest, except in a case of necessity. But matrimony is not a necessary sacrament: and consequently the comparison fails. However, clandestine marriages are forbidden on account of the evil results to which they are liable, since it often happens that one of the parties is guilty of fraud in such marriages; frequently, too, they have recourse to other nuptials when they repent of having married in haste; and many other evils result therefrom, besides which there is something disgraceful about them.

Reply to Objection 4: Clandestine marriages are not forbidden as though they were contrary to the essentials of marriage, in the same way as the marriages of unlawful persons, who are undue matter for this sacrament; and hence there is no comparison.

OF THE CONSENT TO WHICH AN OATH OR CARNAL INTERCOURSE IS APPENDED (TWO ARTICLES)

We must now consider the consent to which an oath or carnal intercourse is appended. Under this head there are two points of inquiry:

(1) Whether an oath added to the consent that is expressed in words of the future tense makes a marriage?

(2) Whether carnal intercourse supervening to such a consent makes a marriage?

Whether an oath added to the consent that is expressed in words of the future tense makes a marriage?

Objection 1: It would seem that if an oath be added to a consent that is expressed in words of the future tense it makes a marriage. For no one can bind himself to act against the Divine Law. But the fulfilling of an oath is of Divine law according to Mat. 5:33, "Thou shalt perform thy oaths to the Lord." Consequently no subsequent obligation can relieve a man of the obligation to keep an oath previously taken. If, therefore, after consenting to marry a woman by words expressive of the future and confirming that consent with an oath, a man binds himself to another woman by words expressive of the present, it would seem that none the less he is bound to keep his former oath. But this would not be the case unless that oath made the marriage complete. Therefore an oath affixed to a consent expressed in words of the future tense makes a marriage.

Objection 2: Further, Divine truth is stronger than human truth. Now an oath confirms a thing with the Divine truth. Since then words expressive of consent in the present in which there is mere human truth complete a marriage, it would seem that much more is this the case with words of the future confirmed by an oath.

Objection 3: Further, according to the Apostle (Heb. 6:16), "An oath for confirmation is the end of all . . . controversy"; wherefore in a court of justice at any rate one must stand by an oath rather than by a mere affirmation. Therefore if a man consent to marry a woman by a simple affirmation expressed in words of the present, after having consented to marry another in words of the future confirmed by oath, it would seem that in the judgment of the Church he should be compelled to take the first and not the second as his wife.

Objection 4: Further, the simple uttering of words relating to the future makes a betrothal. But the addition of an oath must have some effect. Therefore it makes something more than a betrothal. Now beyond a betrothal there is nothing but marriage. Therefore it makes a marriage.

On the contrary, What is future is not yet. Now the addition of an oath does not make words of the future tense signify anything else than consent to something future. Therefore it is not a marriage yet.

Further, after a marriage is complete, no further consent is required for the marriage. But after the oath there is yet another consent which makes the marriage, else it would be useless to swear to a future marriage. Therefore it does not make a marriage.

I answer that, An oath is employed in confirmation of one's words; wherefore it confirms that only which is signified by the words, nor does it change their signification. Consequently, since it belongs to words of the future tense, by their very signification, not to make a marriage, since what is promised in the future is not done yet, even though an oath be added to the promise, the marriage is not made yet, as the Master says in the text (Sent. iv, D, 28).

Reply to Objection 1: The fulfilling of a lawful oath is of Divine law, but not the fulfilling of an unlawful oath. Wherefore if a subsequent obligation makes that oath unlawful, whereas it was lawful before, he who does not keep the oath he took previously does not disobey the Divine law. And so it is in the case in point; since he swears unlawfully who promises unlawfully; and a promise about another's property is unlawful. Consequently the subsequent consent by words of the present, whereby a man transfers the power over his body to another woman, makes the previous oath unlawful which was lawful before.

Reply to Objection 2: The Divine truth is most efficacious in confirming that to which it is applied. Hence the Reply to the Third Objection is clear.

Reply to Objection 4: The oath has some effect, not by causing a new obligation, but confirming that which is already made, and thus he who violates it sins more grievously.

Whether carnal intercourse after consent expressed in words of the future makes a marriage?

Objection 1: It would seem that carnal intercourse after consent expressed in words of the future makes a marriage. For consent by deed is greater than consent by word. But he who has carnal intercourse consents by deed to the promise he has previously made. Therefore it would seem that much more does this make a marriage than if he were to consent to mere words referring to the present.

Objection 2: Further, not only explicit but also interpretive consent makes a marriage. Now there can be no better interpretation of consent than carnal intercourse. Therefore marriage is completed thereby.

Objection 3: Further, all carnal union outside marriage is a sin. But the woman, seemingly, does not sin by admitting her betrothed to carnal intercourse. Therefore it makes a marriage.

Objection 4: Further, "Sin is not forgiven unless restitution be made," as Augustine says (Ep. cliii ad Macedon.). Now a man cannot reinstate a woman whom he has violated under the pretense of marriage unless he marry her. Therefore it would seem that even if, after his carnal intercourse, he happen to contract with another by words of the present tense, he is bound to return to the first; and this would not be the case unless he were married to her. Therefore carnal intercourse after consent referring to the future makes a marriage.

On the contrary, Pope Nicholas I says (Resp. ad Consult. Bulg. iii; Cap. Tuas dudum, De clandest. despons.), "Without the consent to marriage, other things, including coition, are of no effect."

Further, that which follows a thing does not make it. But carnal intercourse follows the actual marriage, as effect follows cause. Therefore it cannot make a marriage.

I answer that, We may speak of marriage in two ways. First, in reference to the tribunal of conscience, and thus in very truth carnal intercourse cannot complete a marriage the promise of which has previously been made in words expressive of the future, if inward consent is lacking, since words, even though expressive of the present, would not make a marriage in the absence of mental consent, as stated above (Q[45], A[4]). Secondly, in reference to the judgment of the Church; and since in the external tribunal judgment is given in accordance with external evidence, and since nothing is more expressly significant of consent than carnal intercourse, it follows that in the judgment of the Church carnal intercourse following on betrothal is declared to make a marriage, unless there appear clear signs of deceit or fraud [*According to the pre-Tridentine legislation] (De sponsal. et matrim., cap. Is qui fidem).

Reply to Objection 1: In reality he who has carnal intercourse consents by deed to the act of sexual union, and does not merely for this reason consent to marriage except according to the interpretation of the law.

Reply to Objection 2: This interpretation does not alter the truth of the matter, but changes the judgment which is about external things.

Reply to Objection 3: If the woman admit her betrothed, thinking that he wishes to consummate the marriage, she is excused from the sin, unless there be clear signs of fraud; for instance if they differ considerably in birth or fortune, or some other evident sign appear. Nevertheless the affianced husband is guilty of fornication, and should be punished for this fraud he has committed.

Reply to Objection 4: In a case of this kind the affianced husband, before his marriage with the other woman, is bound to marry the one to whom he was betrothed, if she be his equal or superior in rank. But if he has married another woman, he is no longer able to fulfill his obligation, wherefore it suffices if he provide for her marriage. Nor is he bound even to do this, according to some, if her affianced husband is of much higher rank than she, or if there be some evident sign of fraud, because it may be presumed that in all probability she was not deceived but pretended to be.

OF COMPULSORY AND CONDITIONAL CONSENT (SIX ARTICLES)

We must now consider compulsory and conditional consent. Under this head there are six points of inquiry:

(1) Whether compulsory consent is possible?

(2) Whether a constant man can be compelled by fear?

(3) Whether compulsory consent invalidates marriage?

(4) Whether compulsory consent makes a marriage as regards the party using compulsion?

(5) Whether conditional consent makes a marriage?

(6) Whether one can be compelled by one's father to marry?

Whether a compulsory consent is possible?

Objection 1: It would seem that no consent can be compulsory. For, as stated above (Sent. ii, D, 25 [*FS, Q[6], A[4]]) the free-will cannot be compelled. Now consent is an act of the free-will. Therefore it cannot be compulsory.

Objection 2: Further, violent is the same as compulsory. Now, according to the Philosopher (Ethic. iii, 1), "a violent action is one the principle of which is without, the patient concurring not at all." But the principle of consent is always within. Therefore no consent can be compulsory.

Objection 3: Further, every sin is perfected by consent. But that which perfects a sin cannot be compulsory, for, according to Augustine (De Lib. Arb. iii, 18), "no one sins in what he cannot avoid." Since then violence is defined by jurists (i, ff. de eo quod vi metusve) as the "force of a stronger being that cannot be repulsed," it would seem that consent cannot be compulsory or violent.

Objection 4: Further, power is opposed to liberty. But compulsion is allied to power, as appears from a definition of Tully's in which he says that "compulsion is the force of one who exercises his power to detain a thing outside its proper bounds." Therefore the free-will cannot be compelled, and consequently neither can consent which is an act thereof.

On the contrary, That which cannot be, cannot be an impediment. But compulsory consent is an impediment to matrimony, as stated in the text (Sent. iv, D, 29). Therefore consent can be compelled.

Further, in marriage there is a contract. Now the will can be compelled in the matter of contracts; for which reason the law adjudges that restitution should be made of the whole, for it does not ratify

"that which was done under compulsion or fear" (Sent. iv, D[29]). Therefore in marriage also it is possible for the consent to be compulsory.

I answer that, Compulsion or violence is twofold. One is the cause of absolute necessity, and violence of this kind the Philosopher calls (Ethic. iii, 1) "violent simply," as when by bodily strength one forces a person to move; the other causes conditional necessity, and the Philosopher calls this a "mixed violence," as when a person throws his merchandise overboard in order to save himself. In the latter kind of violence, although the thing done is not voluntary in itself, yet taking into consideration the circumstances of place and time it is voluntary. And since actions are about particulars, it follows that it is voluntary simply, and involuntary in a certain respect (Cf. FS, Q[6], A[6]). Wherefore this latter violence or compulsion is consistent with consent, but not the former. And since this compulsion results from one's fear of a threatening danger, it follows that this violence coincides with fear which, in a manner, compels the will, whereas the former violence has to do with bodily actions. Moreover, since the law considers not merely internal actions, but rather external actions, consequently it takes violence to mean absolute compulsion, for which reason it draws a distinction between violence and fear. Here, however, it is a question of internal consent which cannot be influenced by compulsion or violence as distinct from fear. Therefore as to the question at issue compulsion and fear are the same. Now, according to lawyers fear is "the agitation of the mind occasioned by danger imminent or future" (Ethic. iii, 1).

This suffices for the Replies to the Objections; for the first set of arguments consider the first kind of compulsion, and the second set of arguments consider the second.

Whether a constant man can be compelled by fear?

Objection 1: It would seem that "a constant man" [*Cap. Ad audientiam, De his quae vi.] cannot be compelled by fear. Because the nature of a constant man is not to be agitated in the midst of dangers. Since then fear is "agitation of the mind occasioned by imminent danger," it would seem that he is not compelled by fear.

Objection 2: Further, "Of all fearsome things death is the limit," according to the Philosopher (Ethic. iii, 6), as though it were the most perfect of all things that inspire fear. But the constant man is not compelled by death, since the brave face even mortal dangers. Therefore no fear influences a constant man.

Objection 3: Further, of all dangers a good man fears most that which affects his good name. But the fear of disgrace is not reckoned to influence a constant man, because, according to the law (vii, ff, de eo quod metus, etc.), "fear of disgrace is not included under the ordinance, 'That which is done through fear'" [*Dig. iv, 2, Quod metus causa]. Therefore neither does any other kind of fear influence a constant man.

Objection 4: Further, in him who is compelled by fear, fear leaves a sin, for it makes him promise what he is unwilling to fulfill, and thus it makes him lie. But a constant man does not commit a sin, not even a very slight one, for fear. Therefore no fear influences a constant man.

On the contrary, Abraham and Isaac were constant. Yet they were influenced by fear, since on account of fear each said that his wife was his sister (Gn. 12:12; 26:7).

Further, wherever there is mixed violence, it is fear that compels. But however constant a man may be he may suffer violence of that kind, for if he be on the sea, he will throw his merchandise overboard if menaced with shipwreck. Therefore fear can influence a constant man.

I answer that, By fear influencing a man we mean his being compelled by fear. A man is compelled by fear when he does that which otherwise he would not wish to do, in order to avoid that which he fears. Now the constant differs from the inconstant man in two respects. First, in respect of the quality of the danger feared, because the constant man follows right reason, whereby he knows whether to omit this rather than that, and whether to do this rather than that. Now the lesser evil or the greater good is always to be chosen in preference; and therefore the constant man is compelled to bear with the lesser evil through fear of the greater evil, but he is not compelled to bear with the greater evil in order to avoid the lesser. But the inconstant man is compelled to bear with the greater evil through fear of a lesser evil, namely to commit sin through fear of bodily suffering; whereas on the contrary the obstinate man cannot be compelled even to permit or to do a lesser evil, in order to avoid a greater. Hence the constant man is a mean between the inconstant and the obstinate. Secondly, they differ as to their estimate of the threatening evil, for a constant man is not compelled unless for grave and probable reasons, while the inconstant man is compelled by trifling motives: "The wicked man seeth when no man pursueth" (Prov. 28:1).

Reply to Objection 1: The constant man, like the brave man, is fearless, as the Philosopher states (Ethic. iii, 4), not that he is altogether without fear, but because he fears not what he ought not to fear, or where, or when he ought not to fear.

Reply to Objection 2: Sin is the greatest of evils, and consequently a constant man can nowise be compelled to sin; indeed a man should die rather than suffer the like, as again the Philosopher says (Ethic. iii, 6,9). Yet certain bodily injuries are less grievous than certain others; and chief among them are those which relate to the person, such as death, blows, the stain resulting from rape, and slavery. Wherefore the like compel a constant man to suffer other bodily injuries. They are contained in the verse: "Rape, status, blows, and death." Nor does it matter whether they refer to his own person, or to the person of his wife or children, or the like.

Reply to Objection 3: Although disgrace is a greater injury it is easy to remedy it. Hence fear of disgrace is not reckoned to influence a constant man according to law.

Reply to Objection 4: The constant man is not compelled to lie, because at the time he wishes to give; yet afterwards he wishes to ask for restitution, or at least to appeal to the judge, if he promised not to ask for restitution. But he cannot promise not to appeal, for since this is contrary to the good of justice, he cannot be compelled thereto, namely to act against justice.

Whether compulsory consent invalidates a marriage?

Objection 1: It would seem that compulsory consent does not invalidate a marriage. For just as consent is necessary for matrimony, so is intention necessary for Baptism. Now one who is compelled by fear to receive Baptism, receives the sacrament. Therefore one who is compelled by fear to consent is bound by his marriage.

Objection 2: Further, according to the Philosopher (Ethic. iii, 1), that which is done on account of mixed violence is more voluntary than involuntary. Now consent cannot be compelled except by mixed violence. Therefore it is not entirely involuntary, and consequently the marriage is valid.

Objection 3: Further, seemingly he who has consented to marriage under compulsion ought to be counseled to stand to that marriage; because to promise and not to fulfill has an "appearance of evil," and the Apostle wishes us to refrain from all such things (1 Thess 5:22). But that would not be the case if compulsory consent invalidated a marriage altogether. Therefore, etc.

On the contrary, A Decretal says (cap. Cum locum, De sponsal. et matrim.): "Since there is no room for consent where fear or compulsion enters in, it follows that where a person's consent is required, every pretext for compulsion must be set aside." Now mutual contract is necessary in marriage. Therefore, etc.

Further, Matrimony signifies the union of Christ with the Church, which union is according to the liberty of love. Therefore it cannot be the result of compulsory consent.

I answer that, The marriage bond is everlasting. Hence whatever is inconsistent with its perpetuity invalidates marriage. Now the fear which compels a constant man deprives the contract of its perpetuity, since its complete rescission can be demanded. Wherefore this compulsion by fear which influences a constant man, invalidates marriage, but not the other compulsion. Now a constant man is reckoned a virtuous man who, according to the Philosopher (Ethic. iii, 4), is a measure in all human actions.

However, some say that if there be consent although compulsory, the marriage is valid in conscience and in God's sight, but not in the eyes of the Church, who presumes that there was no inward consent on account of the fear. But this is of no account, because the Church should not presume a person to sin until it be proved; and he sinned if he said that he consented whereas he did not consent. Wherefore the Church presumes that he did consent, but judges this compulsory consent to be insufficient for a valid marriage.

Reply to Objection 1: The intention is not the efficient cause of the sacrament in baptism, it is merely the cause that elicits the action of the agent; whereas the consent is the efficient cause in matrimony. Hence the comparison fails.

Reply to Objection 2: Not any kind of voluntariness suffices for marriage: it must be completely voluntary, because it has to be perpetual; and consequently it is invalidated by violence of a mixed nature.

Reply to Objection 3: He ought not always to be advised to stand to that marriage, but only when evil results are feared from its dissolution. Nor does he sin if he does otherwise, because there is no appearance of evil in not fulfilling a promise that one has made unwillingly.

Whether compulsory consent makes a marriage as regards the party who uses compulsion?

Objection 1: It would seem that compulsory consent makes a marriage, at least as regards the party who uses compulsion. For matrimony is a sign of a spiritual union. But spiritual union which is by charity may be with one who has not charity. Therefore marriage is possible with one who wills it not.

Objection 2: Further, if she who was compelled consents afterwards, it will be a true marriage. But he who compelled her before is not bound by her consent. Therefore he was married to her by virtue of the consent he gave before.

On the contrary, Matrimony is an equiparant relation. Now a relation of that kind is equally in both terms. Therefore if there is an impediment on the part of one, there will be no marriage on the part of the other.

I answer that, Since marriage is a kind of relation, and a relation cannot arise in one of the terms without arising in the other, it follows that whatever is an impediment to matrimony in the one, is an impediment to matrimony in the other; since it is impossible for a man to be the husband of one who is not his wife, or for a woman to be a wife without a husband, just as it is impossible to be a mother without having a child. Hence it is a common saying that "marriage is not lame."

Reply to Objection 1: Although the act of the lover can be directed to one who loves not, there can be no union between them, unless love be mutual. Wherefore the Philosopher says (Ethic. viii, 2) that friendship which consists in a kind of union requires a return of love.

Reply to Objection 2: Marriage does not result from the consent of her who was compelled before, except in so far as the other party's previous consent remains in force; wherefore if he were to withdraw his consent there would be no marriage.

Whether conditional consent makes a marriage?

Objection 1: It would seem that not even a conditional consent makes a marriage, because a statement is not made simply if it is made subject to a condition. But in marriage the words expressive of consent must be uttered simply. Therefore a conditional consent makes no marriage.

Objection 2: Further, marriage should be certain. But where a statement is made under a condition it is rendered doubtful. Therefore a like consent makes no marriage.

On the contrary, In other contracts an obligation is undertaken conditionally, and holds so long as the condition holds. Therefore since marriage is a contract, it would seem that it can be made by a conditional consent.

I answer that, The condition made is either of the present or of the future. If it is of the present and is not contrary to marriage, whether it be moral or immoral, the marriage holds if the condition is verified, and is invalid if the condition is not verified. If, however, it be contrary to the marriage blessings, the marriage is invalid, as we have also said in reference to betrothals (Q[43], A[1]). But if the condition refer to the future, it is either necessary, as that the sun will rise tomorrow---and then the marriage is valid, because such future things are present in their causes---or else it is contingent, as the payment of a sum of money, or the consent of the parents, and then the judgment about a consent of this kind is the same as about a consent expressed in words of the future tense; wherefore it makes no marriage.

This suffices for the Replies to the Objections.

Whether one can be compelled by one's father's command to marry?

Objection 1: It would seem that one can be compelled by one's father's command to marry. For it is written (Col. 3:20): "Children, obey your parents in all things." Therefore they are bound to obey them in this also.

Objection 2: Further, Isaac charged Jacob (Gn. 28:1) not to take a wife from the daughters of Chanaan. But he would not have charged him thus unless he had the right to command it. Therefore a son is bound to obey his father in this.

Objection 3: Further, no one should promise, especially with an oath, for one whom he cannot compel to keep the promise. Now parents promise future marriages for their children, and even confirm their promise by oath. Therefore they can compel their children to keep that promise.

Objection 4: Further, our spiritual father, the Pope to wit, can by his command compel a man to a spiritual marriage, namely to accept a bishopric. Therefore a carnal father can compel his son to marriage.

On the contrary, A son may lawfully enter religion though his father command him to marry. Therefore he is not bound to obey him in this.

Further, if he were bound to obey, a betrothal contracted by the parents would hold good without their children's consent. But this is against the law (cap. Ex litteris, De despon. impub.). Therefore, etc.

I answer that, Since in marriage there is a kind of perpetual service, as it were, a father cannot by his command compel his son to marry, since the latter is of free condition: but he may induce him for a reasonable cause; and thus the son will be affected by his father's command in the same way as he is affected by that cause, so that if the cause be compelling as indicating either obligation or fitness, his father's command will compel him in the same measure: otherwise he may not compel him.

Reply to Objection 1: The words of the Apostle do not refer to those matters in which a man is his own master as the father is. Such is marriage by which the son also becomes a father.

Reply to Objection 2: There were other motives why Jacob was bound to do what Isaac commanded him, both on account of the wickedness of those women, and because the seed of Chanaan was to be cast forth from the land which was promised to the seed of the patriarchs. Hence Isaac could command this.

Reply to Objection 3: They do not swear except with the implied condition "if it please them"; and they are bound to induce them in good faith.

Reply to Objection 4: Some say that the Pope cannot command a man to accept a bishopric, because consent should be free. But if this be granted there would be an end of ecclesiastical order, for unless a man can be compelled to accept the government of a church, the Church could not be preserved, since sometimes those who are qualified for the purpose are unwilling to accept unless they be compelled. Therefore we must reply that the two cases are not parallel; for there is no bodily service in a spiritual marriage as there is in the bodily marriage; because the spiritual marriage is a kind of office for dispensing the public weal: "Let a man so account of us as of the ministers of Christ, and the dispensers of the mysteries of God" (1 Cor. 4:1).

OF THE OBJECT OF THE CONSENT (TWO ARTICLES)

We must now consider the object of the consent. Under this head there are two points of inquiry:

(1) Whether the consent that makes a marriage is a consent to carnal intercourse?

(2) Whether consent to marry a person for an immoral motive makes a marriage?

Whether the consent that makes a marriage is a consent to carnal intercourse?

Objection 1: It would seem that the consent which makes a marriage is a consent to carnal intercourse. For Jerome [*The words quoted are found implicitly in St. Augustine (De Bono Viduit ix)] says that "for those who have vowed virginity it is wicked, not only to marry, but even to wish to marry." But it would not be wicked unless it were contrary to virginity, and marriage is not contrary to virginity except by reason of carnal intercourse. Therefore the will's consent in marriage is a consent to carnal intercourse.

Objection 2: Further, whatever there is in marriage between husband and wife is lawful between brother and sister except carnal intercourse. But there cannot lawfully be a consent to marriage between them. Therefore the marriage consent is a consent to carnal intercourse.

Objection 3: Further, if the woman say to the man: "I consent to take thee provided however that you know me not," it is not a marriage consent, because it contains something against the essence of that consent. Yet this would not be the case unless the marriage consent were a consent to carnal intercourse. Therefore, etc.

Objection 4: Further, in everything the beginning corresponds to the consummation. Now marriage is consummated by carnal intercourse. Therefore, since it begins by the consent, it would seem that the consent is to carnal intercourse.

On the contrary, No one that consents to carnal intercourse is a virgin in mind and body. Yet Blessed John the evangelist after consenting to marriage was a virgin both in mind and body. Therefore he did not consent to carnal intercourse.

Further, the effect corresponds to its cause. Now consent is the cause of marriage. Since then carnal intercourse is not essential to marriage, seemingly neither is the consent which causes marriage a consent to carnal intercourse.

I answer that, The consent that makes a marriage is a consent to marriage, because the proper effect of the will is the thing willed. Wherefore, according as carnal intercourse stands in relation to marriage, so far is the consent that causes marriage a consent to carnal intercourse. Now, as stated above (Q[44], A[1]; Q[45], AA[1],2), marriage is not essentially the carnal union itself, but a certain joining together of husband and wife ordained to carnal intercourse, and a further consequent union between husband and wife, in so far as they each receive power over the other in reference to carnal intercourse, which joining together is called the nuptial bond. Hence it is evident that they said well who asserted that to consent to marriage is to consent to carnal intercourse implicitly and not explicitly. For carnal intercourse is not to be understood, except as an effect is implicitly contained in its cause, for the power to have carnal intercourse, which power is the object of the consent, is the cause of carnal intercourse, just as the power to use one's own property is the cause of the use.

Reply to Objection 1: The reason why consent to marriage after taking the vow of virginity is sinful, is because that consent gives a power to do what is unlawful: even so would a man sin if he gave another man the power to receive that which he has in deposit, and not only by actually delivering it to him. With regard to the consent of the Blessed Virgin, we have spoken about it above (Sent. iv, D, 3; TP, Q[29], A[2]).

Reply to Objection 2: Between brother and sister there can be no power of one over the other in relation to carnal intercourse, even as neither can there be lawfully carnal intercourse itself. Consequently the argument does not prove.

Reply to Objection 3: Such an explicit condition is contrary not only to the act but also to the power of carnal intercourse, and therefore it is contrary to marriage.

Reply to Objection 4: Marriage begun corresponds to marriage consummated, as habit or power corresponds to the act which is operation.

The arguments on the contrary side show that consent is not given explicitly to carnal intercourse; and this is true.

Whether marriage can result from one person's consent to take another for a base motive?

Objection 1: It would seem that marriage cannot result from one person's consent to take another for a base motive. For there is but one reason for one thing. Now marriage is one sacrament. Therefore it cannot result from the intention of any other end than that for which it was instituted by God; namely the begetting of children.

Objection 2: Further, the marriage union is from God, according to Mat. 19:6, "What . . . God hath joined together let no man put asunder." But a union that is made for immoral motives is not from God. Therefore it is not a marriage.

Objection 3: Further, in the other sacraments, if the intention of the Church be not observed, the sacrament is invalid. Now the intention of the Church in the sacrament of matrimony is not directed to a base purpose. Therefore, if a marriage be contracted for a base purpose, it will not be a valid marriage.

Objection 4: Further, according to Boethius (De Diff., Topic. ii) "a thing is good if its end be good." But matrimony is always good. Therefore it is not matrimony if it is done for an evil end.

Objection 5: Further, matrimony signifies the union of Christ with the Church; and in this there can be nothing base. Neither therefore can marriage be contracted for a base motive.

On the contrary, He who baptizes another for the sake of gain baptizes validly. Therefore if a man marries a woman for the purpose of gain it is a valid marriage.

Further, the same conclusion is proved by the examples and authorities quoted in the text (Sent. iv, D, 30).

I answer that, The final cause of marriage may be taken as twofold, namely essential and accidental. The essential cause of marriage is the end to which it is by its very nature ordained, and this is always good, namely the begetting of children and the avoiding of fornication. But the accidental final cause thereof is that which the contracting parties intend as the result of marriage. And since that which is intended as the result of marriage is consequent upon marriage, and since that which comes first is not altered by what comes after, but conversely; marriage does not become good or evil by reason of that cause, but the contracting parties to whom this cause is the essential end. And since accidental causes are infinite in number, it follows that there can be an infinite number of such causes in matrimony, some of which are good and some bad.

Reply to Objection 1: This is true of the essential and principal cause; but that which has one essential and principal end may have several secondary essential ends, and an infinite number of accidental ends.

Reply to Objection 2: The joining together can be taken for the relation itself which is marriage, and that is always from God, and is good, whatever be its cause; or for the act of those who are being joined together, and thus it is sometimes evil and is not from God simply. Nor is it unreasonable